



**Suleiman the Magnificent** was sultan of the Ottoman Empire when it was at its strongest, from 1520 to 1566. He was the most powerful leader of the Islamic world in the 16th century.

or forbidden (*haram*). Punishments are prescribed for the last two categories. Some types of serious crime, including murder and sexual violations, known as *hudud*, had severe punishments laid down in the Koran and the *hadith* (such as the cutting off of thieves' hands or the stoning of adulterers). However, the evidential requirements for these were greater. For most crimes, two male witnesses (or one male and two female) were required, but for adultery, four adult male witnesses were needed.

Partly because it could be difficult to find sufficient witnesses, many aspects of criminal law were transferred to state courts under the Abbasids in the 9th century (at roughly the time that *taqlid* supplanted *ijtihad* as the core of legal reasoning). Although family

and property law remained the domain of religious judges, this established a long-running tension between secular and religious law in Islamic societies. Whereas once the religious hierarchy made—or at least made judgments upon—the law, secular rulers now legislated. These included the Ottoman sultans, such as the 16th-century sultan Suleiman the Magnificent, who built up a body of administrative law, or *kanuni*.

### Sharia law today

The idealized view of the Islamic state had been one ruled by Islamic law based on the Koran; *hadith*; and a partnership between the caliph, the clergy, and *qadis*. In countries where Muslims are a minority, this balance clearly cannot hold, but there have been calls for governments to recognize the authority of Sharia courts to decide on religious matters. This has proved controversial because it has been viewed by some as the subordination of national law to Islamic religious law.

In Muslim-majority countries such as Pakistan, pressure has grown for Sharia law to have a role

“  
Stand out firmly  
for justice,  
as witnesses to Allah.  
**Koran 4:135**

within the secular national legal framework. In extreme cases, such as the Taliban regime in Afghanistan, this has led to Sharia being taken to be the only source of legal legitimacy. On the other hand, in some countries, the law has been seen as oppressive toward certain sections of society, such as women, and there has been pressure to reform. In Saudi Arabia, for example, it was recognized that forbidding women to drive was based more on traditional cultural practice than Islamic law. The struggle to define and interpret the laws governing the world's 2 billion Muslims continues. ■

### Abu Hamid al-Ghazali

Born in Tabaran, Iran, in 1058, al-Ghazali was appointed head of the Shafi *madrasa* (educational institute) in Baghdad in 1091, where he taught for 5 years. He wrote more than 70 works and was later regarded as a *mujaddid*, or renovator of the law, whose interpretations were treated with particular respect.

Al-Ghazali condemned loyalty to leaders who claimed their own secret revelation of the Sharia, denouncing this as

heretical. This denunciation was aimed at the Assassins, an Islamic sect that regularly sent assassins to kill opponents. He lectured until at least 1110, and died the following year.

### Key works

**Late 11th century** *The Revival of the Religious Sciences*  
**c. 1105** *The Alchemy of Happiness*